

reasonable given the nature and scope of the issues in the case and the litigation that occurred up to the entry of the Judgment. See Supporting Declaration, **Exhibit A**.

The Court further finds that the **\$1,070.58** in claimed costs were reasonable and necessary to the conduct of the litigation. See Supporting Declaration, **Exhibit A**, p. 9.

*In addition, the Court notes that, since the last hearing, the Court of Appeal issued an order dated April 16, 2026 denying Plaintiff's request for immediate stay and petition for writ of prohibition.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Defendant is awarded and shall recover from Plaintiff attorneys' fees in the sum of **\$42,000.00**.
3. Defendant is awarded and shall recover from Plaintiff costs of suit in the sum of **\$1,070.58**.
4. The Court will issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-01037
CASE NAME: ROBERT LOPEZ VS. MARILYNE CASTILLO
HEARING ON DEMURRER TO: ANSWER OF ROBERT LOPEZ
FILED BY: CASTILLO, MARILYNE
TENTATIVE RULING:

Before the Court is Defendant/Cross-Complainant Marilyne Castillo's Demurrer to Cross-Defendant's Affirmative Defenses in Defendant's Answer ("Demurrer").

The hearing on the Demurrer is continued until **June 22, 2026**, as outlined below.

Factual and Procedural Background

Plaintiff filed the Complaint in this matter on April 11, 2025. According to the Complaint, Plaintiff and Defendant both own real properties located at 2345 Paloma Court in Pinole, California. Plaintiff owns unit #6 which is directly above unit #2, which is owned by Defendant. Defendant rents out her unit to tenants. The Complaint generally relates to alleged nuisance and trespass claims by Plaintiff relating to Defendant's tenant's actions and Defendant's failure to manage her tenants and enforce the HOA rules.

Defendant filed a cross-complaint against Plaintiff on June 20, 2025. Plaintiff/Cross-Defendant demurred to the cross-complaint. The First Amended Cross-Complaint ("FACC") was filed on October 10, 2025. Plaintiff/Cross-Defendant filed his Answer to the FACC on November 12, 2025. Nine days later, on November 21, 2025, counsel for Defendant/Cross-Complainant filed a Declaration Regarding Inability to Comply with Meet and Confer Requirement ("Inability Declaration") related to his proposed Demurrer to the Answer. He then filed the Demurrer on December 9, 2025.

Legal Standard

The standard for a demurrer to an answer is whether the answer states facts sufficient to constitute a defense. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) A defendant must set

forth the “essential facts” of the affirmative defense, “sufficient to acquaint [plaintiff] with the nature, source and extent” of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.)

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain:

- (1) The general or specific denial of the material allegations of the complaint controverted by the defendant.
- (2) A statement of any new matter constituting a defense.

“The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’” (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) A new matter is one in which the defendant has the burden of proof. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 239.)

“Such ‘new matter’ is also known as ‘an affirmative defense.’ [citation] Affirmative defenses must not be pled as ‘terse legal conclusions,’ but rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’” (*Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 294 quoting *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-13.); see also, *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384 [same]; *South Shore Land Co., supra*, 226 Cal.App.2d at 732 [“Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.”].)

For the purposes of the ruling on demurrer, *i.e.*, to test the sufficiency of the answer, it admits all facts well pleaded in the answer, including denials. (*Miller & Lux v. San Joaquin Light & Power Corp.* (1932) 120 Cal.App. 589, 600, [demurrer “admitted the truth of all issuable facts pleaded in the answer and eliminated all allegations in the amended complaint denied by the answer”]; *Warren v. Harootunian* (1961) 189 Cal.App.2d 546, 548.) A failure to demur specially is a waiver of defects of form. (*Allerton v. King* (1929) 96 Cal.App. 230, 233, 235.)

Even where a defense is defectively pled, it may be allowed if the defendant’s pleading gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because un-pled defenses are waived. (See *Harris v. City of Santa Monica* (2013) 56 Cal. 4th 203, 240.) “The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733.)

Initial Consideration

The basis of Cross-Complainant’s Demurrer is essentially that the Answer does not provide sufficient facts to support several of the affirmative defenses. Instead of putting this matter before the Court, Cross-Complainant’s counsel could have easily served Form Interrogatory No. 15.1 on Cross-Defendant. That Interrogatory states:

Identify each denial of a material allegation and each special or affirmative defense in your pleadings and for each:

- (a) **state all facts upon which you base the denial or special or affirmative defense;**

- (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and
- (c) identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT. (emphasis added.)

If Cross-Complainant believed that there was no factual basis for the asserted affirmative defenses, it could have required Cross-Defendant to provide the facts, as well as identify the person(s) and document(s) that support each affirmative defense. This is a more efficient method for addressing these issues, instead of burdening the Court with a motion which, even if granted, will give Cross-Defendant an opportunity to amend to reassert, thereby soliciting another round of demurrer.

As the Rutter Guide helpfully explains in a Practice Pointer:

A demurrer can be used to eliminate ‘boilerplate’ affirmative defenses that often appear in answers (e.g., ‘waiver,’ ‘estoppel,’ ‘unclean hands,’ etc.). ***But such demurrers are very rare, probably because they are not worth the cost when the same result can be achieved by serving requests for admission or standard form interrogatories seeking the bases for the affirmative defenses.*** (Weil & Brown et al., Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2020) ¶ 7:35.1, p. 7(l)-20 (emphasis added).)

While the Court believes that properly propounded Form Interrogatory No. 15.1 is an appropriate means of settling conclusory pleaded affirmative defenses and that the Court’s and the litigant’s time would be better served by such an approach, the Court will address the Demurrer presented by Cross-Complainant if, after the parties properly meet and confer, Cross-Complainant still wishes to proceed with the Demurrer.

Meet and Confer Requirement

Before filing a demurrer, the “demurring party shall meet and confer in person, by telephone or by video conference with the party who filed the pleading that is subject to the demurrer....” (Code Civ. Proc. § 430.41(a) (emphasis added).) The meet and confer “shall” include a discussion of the legal support for the parties’ positions. (Code Civ. Proc. § 430.41(a)(1).) The meet and confer is to take place at least 5 days prior to the date the responsive pleading is due. (*Id.* at (a)(2).)

The demurring party shall file and serve a declaration stating that either:

- “(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to the demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. [or]
- (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc. § 430.41(a)(3).)

Meet and Confer Efforts

Cross-Defendant filed his Answer to the FACC on November 12, 2025. As such, Cross-Complainant’s

Demurrer would be due on or before December 12, 2025. Cross-Complainant's counsel's Inability Declaration in support of the automatic extension indicates that on Tuesday "November 18, 2025, [he] emailed counsel for Cross-Defendant Christina Weed requesting that we meet and confer, in compliance with Code of Civil Procedure § 430.41(a)." (¶ 5.) Three days later, on November 21, Cross-Complainant's counsel filed the Inability Declaration. The Inability Declaration was filed at 8:37 a.m. – before regular business hours. The parties still had sixteen days to meet and confer.

Eighteen days later, on December 9, 2025, only 2 days after the original 30-day deadline had passed and 28 days before the automatic 30-day extension expired, Cross-Complainant filed their Demurrer to the Answer. The declaration in support of the Demurrer includes the same meet and confer 'attempt' as that laid out in the Inability Declaration. There are no other indications that Cross-Complainant's counsel attempted to reach out to Cross-Defendant's counsel after the initial attempt on November 18.

Initially, the Code requires that as part of the meet and confer the demurring party shall identify the specific issues it believes are subject to demur and "identify with legal support the basis of the deficiencies." (Cal. Code Civ. Proc. § 430.41 (a)(1).) Cross-Complainant's Counsel's two declarations both indicated he emailed "counsel for Cross-Defendant Christina Weed requesting that we meet and confer...." (Decls. ¶ 5.) There is no indication that the meet and confer request included any substantive argument and/or legal authority for their position.

After sending the initial email, counsel only waited three days before filing the Inability Declaration indicating that he was "unable to meet and confer ... within the time required under" the Code. (¶ 7.) This is despite the fact that there were still sixteen days left in which to meet and confer. Cross-Complainant's counsel did not provide adequate time for opposing counsel to respond.

After filing the Inability Declaration, Cross-Complainant's counsel waited just over two weeks before filing the Demurrer without any additional attempts to contact opposing counsel. In other words, counsel relied upon the single email from November 18 as the basis for the attempted meet and confer.

The Code is very clear that counsel for the parties are required to **speak** to each other and to make a **good faith attempt** to resolve their issues before filing a Demurrer. The 'efforts' outlined by Cross-Complainant's counsel's declaration indicates this did not occur. Counsel sent a single email 'requesting to meet and confer' without any substantive argument or legal authority. When he did not hear back three days later he sought and obtained a 30-day extension. Then, without any additional attempts to meet and confer filed the Demurrer. This is not a good faith effort to comply with the Code.

It is also worth noting that at no time after November 18 did Plaintiff/Cross-Defendant's counsel respond to the November 18 email. There is no declaration explaining why they never responded to the meet and confer request. The Code's requires cooperation in meeting and conferring before a demurrer is filed. This includes responding to requests from opposing counsel.

Conclusion

As the Parties have failed to properly meet and confer prior, the Court orders as follows:

- The parties are ordered to meet and confer in person, via telephone or video conference on or before 5:00 p.m. on **May 29, 2026**.
- Cross-Complainant's counsel shall file a declaration by 4:00 p.m. on **June 5, 2026** confirming when and how the meet and confer took place.
- The declaration shall state that the Parties either (1) reached an agreement on the merits of the Demurrer and the Parties are stipulating to the filing of an amended answer, or (2) did not reach an agreement and the Court should proceed with ruling on the Demurrer as filed – or any portion thereof to which the Parties could not agree. (For example, if Cross-Defendant agrees to withdraw any of the Affirmative Defenses, the parties shall notify the Court of this.)

The hearing on the matter is continued until **June 22, 2026**.

11. 9:00 AM CASE NUMBER: C25-01362

CASE NAME: BRUNO VIEIRA VS. JIMMY BASTOS

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTFs**

FILED BY:

TENTATIVE RULING:

Gregory W. Reaume ("Counsel") filed a motion to be relieved as counsel on January 15, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on June 1, 2026. The motion was subsequently advanced for hearing to April 27, 2026 by the Court's Order entered April 27, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Bruno Melo Vieira ("Plaintiff").

The supporting declaration filed by Counsel indicates that ongoing "irreconcilable differences" have arisen between counsel and Plaintiff which have made it unreasonably difficult for the attorney to carry out the representation effectively. See Declarations filed January 15, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

No opposition or other response has been filed by Plaintiff or any other party.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit a revised order after hearing. The form MC-053 Order should be updated to reflect the latest calendar settings at Paragraph 7 and updated departmental and other hearing information.